FARMERSVILLE CITY COUNCIL

MEETING AGENDA

June 8, 2026 at 6:00 p.m.
City Hall, 909 W. Visalia Rd.
Farmersville, California 93223

Mayor
Tina Hernandez
Mayor Pro Tem
Araceli Ochoa
Council Members
Gregorio Gomez
Paul Boyer
Danny Valdavinos

Pending no technical difficulties, the City Council meeting will also be streamed (for observation only) via Zoom and accessed as follows:
Please dial 1-669-900-6833
Meeting ID:856 1662 1857
Password: 728567

Notice is hereby given that the Farmersville City Council will hold a Regular Meeting on Monday, June 8, 2026, at 6:00 p.m. in person at City Hall located at 909 W. Visalia Rd. in Farmersville California, 93223.

Staff Reports related to items on the agenda are available on the City's website at https://www.cityoffarmersville-ca.gov/ and available for viewing at City Hall.

A. CALL TO ORDER SESSION REGULAR COUNCIL MEETING

B. ROLL CALL

C. INVOCATION
Presented by Mayor Hernandez

D. PLEDGE OF ALLEGIANCE
Led by Mayor Hernandez

E. APPROVAL OF AGENDA

F. PUBLIC COMMENTS
The public is invited to comment on any subject under the jurisdiction of the Farmersville City Council. Please note that speakers that wish to comment on a Regular Item or Public Hearing on tonight's agenda will have an opportunity to speak when public comment for that item is requested by the Mayor. Comments shall be limited to two (2) minutes per person, with twenty (20) minutes for the total comment period, unless otherwise indicated by the Mayor.

The public may also choose to submit a comment before the meeting via email. Public comments received via email will be distributed to the Council prior to the start of the meeting and incorporated into the official minutes; however, they will not be read aloud. Under state law, matters presented under public comment cannot be acted upon by the Council at this time.

G. SPECIAL PRESENTATIONS

Proclamation GRID
Proclamation Manuel Mendez

H. CONSENT CALENDAR

Items listed under the Consent Calendar are considered routine and will be enacted by one motion. There will be no separate discussion of these matters unless a request is made and then the item will be removed from the Consent Calendar to be discussed and voted upon by a separate motion.

1. Approval of May 26, 2026, regular meeting minutes
2. Second Reading and Adoption of Resolution 2026-016 Calling for the Submission to the Voters a Measure Relating to the Enactment of a Ten Percent (10%) Transient Occupancy Tax November 3, 2026, General Municipal Election.

I. ACTION ITEMS

Comments related to Action and Public Hearing Items are limited to two (2) minutes per speaker, for a maximum of 20 minutes per item. The Mayor may reasonably limit or extend the public comment period to preserve the Council's interest in conducting efficient, orderly meetings.

1.Resolution 2026-019 Recommending the Appointment of Armando Ernesto David Cervantes Garcia to the Tulare County Association of Governments (TCAG) Measure R Citizens Oversight Committee.
2. Streetlight Style for the Eagle Meadows Subdivision.
3. Presentation on Funding Opportunity (Pedestrian Improvements)
4. Resolution 2026-014 Directing the City Manager to submit a claim for RSTP funds.

J. PUBLIC HEARINGS

K. DISCUSSION ITEMS

1. Cannabis Measure Q Revenue Update

L. COUNCIL REPORTS

M. CITY MANAGER/DEPARTMENT COMMUNICATIONS

N. GENERAL BUSINESS

Council members may raise issues, request future agenda items, or provide comments regarding City business.

O. FUTURE AGENDA ITEMS

Description	Responsible Party	Agenda Date
Sewer DIF	City Manager	TBD
Sign Ordinance	Fire Chief	July 2026
Potential Solar Project	City Manager	TBD
Potential AI Solutions	City Manager	TBD
City Representation on Committees – Water Blueprint for the San Joaquin Valley and San Joaquin Valley Collaborative Action Program	City Manager	TBD
Incentives for Commercial Development Study Session	4Creeks- Traci Myers	July 2026
Cannabis Revenue	City Manager	5-26-2026
Downtown Specific Plan	City Planner	TBD
C-Train Ordinance	City Manager	TBD
ADU Workshop	City Planner	TBD
MOU for positive PR with Visalia Talks	City Manager	TBD
Strategic Planning Meeting	4Creeks	July 2026

P. EXECUTIVE (CLOSED) SESSION

Labor Negotiations §54957.6- Misc. Employees
Pending litigation Gov. Code §54956.9- (2) Boys and Girls Club; Pacheco
Public Employee Performance Evaluation- (2)

Q. REGULAR MEETING ADJOURNMENT

State of California)
County of Tulare) ss.
City of Farmersville)

I declare under penalty of perjury that I am employed by the City of Farmersville, in the City Manager's Office; and that I posted this Agenda on the bulletin board outside of City Hall, 909 W. Visalia Rd. Farmersville, CA 93223 on June 5, 2026 and online on the City of Farmersville website: https://www.cityoffarmersville-ca.gov/.

_____

Rochelle Giovani , City Clerk

In compliance with the Americans with Disabilities Act, and the California Ralph M. Brown Act, if you need special assistance to participate in this meeting, or to be able to access this agenda and documents in the agenda packet, please contact the City Clerk (559)747-0458. Notification prior to the meeting will enable the City to make reasonable

arrangements to ensure accessibility to this meeting and/or provision of an appropriate alternative format of the agenda and documents in the agenda packet. (28 CFR 35.102-35. 104 ADA Title II).

Materials related to an item on this Agenda submitted to the legislative body after distribution of the agenda packet are available for public inspection at Farmersville City Hall, 909 W. Visalia Rd., Farmersville CA 93223 during normal business hours.

FARMERSVILLE CITY COUNCIL

MEETING AGENDA MINUTES

May 26, 2026 at 6:00 p.m.
City Hall, 909 W. Visalia Rd.
Farmersville, California 93223

Pending no technical difficulties, the City Council meeting will also be streamed (for observation only) via Zoom and accessed as follows:
Please dial 1-669-900-6833
Meeting ID:831 6110 3599
Password: 549466

Mayor
Tina Hernandez
Mayor Pro Tem
Araceli Ochoa
Council Members
Gregorio Gomez
Paul Boyer
Danny Valdavinos

Notice is hereby given that the Farmersville City Council will hold a Regular Meeting on Tuesday, May 26, 2026, at 6:00 p.m. in person at City Hall located at 909 W. Visalia Rd. in Farmersville California, 93223.

Staff Reports related to items on the agenda are available on the City's website at https://www.cityoffarmersville-ca.gov/ and available for viewing at City Hall.

A. CALL TO ORDER SESSION REGULAR COUNCIL MEETING *6:03PM*

B. ROLL CALL

Mayor Tina Hernandez
Mayor Pro Tem Araceli Ochoa
Councilmember Greg Gomez
Councilmember Paul Boyer-absent
Councilmember Danny Valdovinos-absent

C. INVOCATION

Presented by Mayor Hernandez

D. PLEDGE OF ALLEGIANCE

Led by Mayor Hernandez

E. APPROVAL OF AGENDA

Council Action: *It was motioned by Mayor Pro Tem Ochoa, seconded by Councilmember Gomez and approved with a 3-0 vote.*

F. PUBLIC COMMENTS

The public is invited to comment on any subject under the jurisdiction of the Farmersville City Council. Please note that speakers that wish to comment on a Regular Item or Public Hearing on tonight's agenda will have an opportunity to speak when public comment for that item is requested by the Mayor. Comments shall be limited to two (2)

minutes per person, with twenty (20) minutes for the total comment period, unless otherwise indicated by the Mayor.

The public may also choose to submit a comment before the meeting via email. Public comments received via email will be distributed to the Council prior to the start of the meeting and incorporated into the official minutes; however, they will not be read aloud. Under state law, matters presented under public comment cannot be acted upon by the Council at this time.

Dario Gutierrez, a Farmersville resident, has concerns regarding his property located at 500 N. Kerns. He stated that city employees left trash in his gutter. Additionally, he has concerns about the sewer rates.

G. SPECIAL PRESENTATIONS

None

H. CONSENT CALENDAR

Items listed under the Consent Calendar are considered routine and will be enacted by one motion. There will be no separate discussion of these matters unless a request is made and then the item will be removed from the Consent Calendar to be discussed and voted upon by a separate motion.

1. Approval of May 11, 2026, regular meeting minutes
2. Approval Warrant Register April 2026

Council Action: *It was motioned by Councilmember Gomez, seconded by Mayor Pro Tem Ochoa and approved with a 3-0 vote.*

I. ACTION ITEMS

Comments related to Action and Public Hearing Items are limited to two (2) minutes per speaker, for a maximum of 20 minutes per item. The Mayor may reasonably limit or extend the public comment period to preserve the Council's interest in conducting efficient, orderly meetings.

1. Action Pertaining to the approval of the City Manager Contract

Council Action: *It was motioned by Mayor Hernandez, seconded by Councilmember Gomez and approved with a 3-0 vote.*

2. Approval of 2026 Task Order No. 1 for Design-Farmersville Pedestrian Improvement Project.

Public Comment:

Dario Gutierrez voiced concerns regarding the crosswalk located at Visalia Road and Stevens Avenue. He stated that at certain times of the day, when the sun is shining directly on the area, the flashing beacon at the crosswalk is difficult to see.

Council Action: *It was motioned by Councilmember Gomez, seconded by Mayor Pro Tem Ochoa and approved with a 3-0 vote.*

J. PUBLIC HEARINGS

1. Resolution 2026-016 Calling for the Submission to the Voters a Measure Relating to the Enactment of a Ten Percent (10%) Transient Occupancy Tax (TOT).

The Council inquired with City Attorney Mike Farley regarding whether they are permitted to hold town hall meetings, post information on the City's website, and include flyers in utility bills. Mr. Farley stated that they are allowed to do all of those things.

Mayor Hernandez opened the public hearing at 6:39pm and closed it at 6:39pm.

Council Action: *It was motioned by Mayor Pro Tem Ochoa, seconded by Councilmember Gomez and approved with a 3-0 vote.*

K. DISCUSSION ITEMS

None

L. COUNCIL REPORTS

Councilmember Gomez inquired about the cannabis revenue. City Clerk Rochelle Giovani stated it was going to be on the next agenda June 8, 2026.

Councilmember Gomez reported that he attended the Tulare County Library fundraiser held at 1852. He stated that he attended with his wife and children and that the event included vendors selling books, comics, and other items. Councilmember Gomez commented that it was a very enjoyable event and expressed hope that the City can continue supporting the library in the future, noting the many contributions the library has made to the community.

Councilmember Gomez also reported that he attended the TCRTA meeting last week. He stated that discussion at the next meeting will focus on future plans for the City's transit center. He thanked Jay for meeting with him to discuss ideas for the facility and expressed hope that the building can continue to serve as a transit center.

Councilmember Gomez further reported that he attended the ribbon cutting ceremony on Friday. Although he was unable to stay for the entire event due to staffing shortages at work, he stated that the speeches were very well done and that it was nice to see the community come together to discuss the significance of the project.

Mayor Pro Tem Ochoa stated that residents have expressed appreciation for the City's creative and innovative approach regarding the use of the transit center. She commented that the project could serve as an example for other cities. Mayor Pro Tem Ochoa thanked Rochelle and Jay for organizing the ribbon cutting ceremony for the Senior Center, Resource Hub and Transit Center and also acknowledged TCAG and 4Creeks for their partnership and support throughout the project.

Mayor Pro Tem Ochoa reported that she would be attending the TCAG Local Motion Awards the following day. She also stated that she would attend the Economic Development meeting on Thursday on behalf of Paul.

Mayor Pro Tem Ochoa further reported that Derek Winning, Director of TCRTA, would like to provide a presentation to the Council and suggested scheduling the presentation for an upcoming meeting.

Mayor Pro Tem Ochoa also thanked Chief Thomas for assisting families affected by the fires and for helping connect them with available resources. She emphasized the importance of holding quarterly meetings to share available resources with City employees, noting that the issue has arisen multiple times and should continue to be addressed.

Mayor Pro Tem Ochoa reported that the affected family is expected to move into housing on June 8. She thanked Mr. Flores for his efforts in helping coordinate assistance for the family. She also acknowledged the support provided by United Way and the County. Mayor Pro Tem Ochoa stated that the family will receive assistance with the housing deposit, along with mental health resources through Kaweah Delta for both the parents and children.

Mayor Pro Tem Ochoa stated that the City should consider establishing an emergency fund to assist families in need. She commented that the City allocates funding toward many other items and expressed that having emergency funds available for families facing unexpected hardships would be beneficial.

Mayor Hernandez reported that the ribbon cutting ceremony for the Senior Center, Resource Hub and Transit Center went very well. She thanked Tracy from 4Creeks for attending and stated that it was nice to see the community come together for the event. Mayor Hernandez also shared that the seniors were very excited and happy about the project, which she was pleased to see.

Mayor Hernandez asked Fire Chief Thomas whether the Fire Department is responsible for contacting the Red Cross following a fire incident or if that is something anyone can do.

Fire Chief Thomas responded that he gathers all of the necessary information and provides a list of resources and items needed to assist affected families. He explained

that once the incident has been mitigated and stabilized to the point where he can step away, he is able to coordinate additional support efforts.

Mayor Hernandez then asked whether Fire Chief Thomas had been the individual who contacted the apartment complex on behalf of the fire victims.

Fire Chief Thomas responded that he had sent Captain Saefong and Code Enforcement Officer Brenda Cereas to the apartment complex to assist the family.

Mayor Hernandez thanked Fire Chief Thomas and City staff for their efforts, stating that because they took immediate action and coordinated directly with the apartment complex, the family was able to secure the only available apartment. She noted that she had also reached out to local realtors and property owners regarding available housing options; however, many available rentals exceeded the family's budget. Mayor Hernandez further stated that several individuals responded to her emails offering assistance, and she appreciated that City staff took control of the situation, coordinated the necessary information, and helped complete the process quickly for the family.

Mayor Hernandez thanked everyone who helped put together the City's parade float and trailer. She reported that the seniors received second place in the parade competition. Mayor Hernandez stated that when the award was presented to the seniors earlier that day, they were very excited and appreciative, and everyone applauded the accomplishment. She commented that it was a great achievement, especially considering it was the seniors' first time participating in the parade in that capacity.

Mayor Hernandez also reported that she attended the Harmonica event at St. Anthony's Church. She stated that she originally planned to stay for only an hour but ended up remaining for the entire evening because everyone was having such a great time. Mayor Hernandez shared that there had not been an event like that in the community since approximately 2018 or 2019. She stated that the event included several bands and was very well attended.

Mayor Hernandez further shared that many attendees asked about City representatives and expressed appreciation for the work being done throughout the City. She stated that community members commented positively on the appearance and progress of the City and were very thankful for the efforts being made.

M. CITY MANAGER/DEPARTMENT COMMUNICATIONS

Interim City Manager Jay Brock provided the Council with an update regarding the new FEMA flood zone changes. He stated that he recently met with Eddie Perez, who provided information and resources intended to help residents better understand flood insurance requirements and available options.

Interim City Manager Jay Brock also thanked City staff for all of their hard work and assistance with the Memorial Day Parade. He stated that the event ran very smoothly and was a success.

Councilmember Gomez asked the Interim City Manager whether staff assignments for City events were being rotated to ensure that the same employees were not always being assigned, unless they specifically volunteered to participate.

The Interim City Manager responded that staff rotation is considered when possible, particularly for Police Department employees who may have worked the night before. However, due to the level of staffing needed for events and traffic control, the City is currently operating in more of an "all hands on deck" capacity. He also noted that the Cities of Lindsay and Exeter provided additional personnel assistance because of the significant amount of traffic control required for the event.

Mayor Hernandez reported that a student from Long Beach who grew up in Farmersville recently completed a documentary film about the community. She stated that the student interviewed several local individuals, including herself and Manuel Mendez, among others.

Mayor Hernandez shared that the documentary, titled "From Farmersville," will be shown in Farmersville on the 30th from 6:00 p.m. to 8:00 p.m. at the Boys & Girls Club. She encouraged anyone interested to attend and view the film, noting that she has not yet seen it herself.

Mayor Hernandez further explained that the student submitted the documentary as part of a class project and that it was selected from among all the submissions. As a result, the student returned to Farmersville with her film crew to conduct interviews and complete the project.

City Engineer Jason Watts reported that the SS4 grant application was successfully submitted before the deadline. He thanked the City Clerk for assisting with gathering and completing the required materials.

He also stated that the next grant application, the GO Rail Grant, is due June 8 and will focus on funding the design for an additional railroad crossing on the east side of town. TCAG and 4Creeks are assisting with the project planning process.

Mr. Watts further reported that tentative plans for the Senior Homes project remain on schedule, with construction activity expected to begin near the end of June pending final approvals and bidding.

In addition, he stated that staff continues to work with TCAG and other agencies regarding future City projects, including the proposed roundabouts on Avenue 280 and other transportation improvements.

Public Works Director Steven Thompson reported that Tulare County conducted a hazardous waste inspection at the City yard. He stated that during the previous inspection the City had received 16 deficiencies; however, during the most recent inspection the City received zero deficiencies. He also reported that staff worked through the Pathway Small Generator program and successfully eliminated the issues that previously placed the City on the generator list, resulting in one less regulatory requirement for the City.

Mr. Thompson also reported that staff repaired several water line breaks on Greg Street and near the new services building in the alley.

In addition, he stated that the splash pad had been painted, repaired, and prepared for operation. Although the original plan was to open today, cooler weather delayed the opening. Mr. Thompson stated that the splash pad is expected to open next week as temperatures increase.

Lastly, Mr. Thompson reported that Public Works crews have been trimming weeds and clearing roadways throughout the City, with plans to continue maintenance efforts in other areas of town after completing the current work.

Fire Chief Thomas reported that within an eight- to nine-day period, the Fire Department responded to two major mobile home fires, including one incident that involved multiple vehicles and surrounding property damage. He stated that crews acted quickly to prevent the fire from spreading to a third mobile home and to nearby structures.

Chief Thomas stated that the incidents were unfortunate for the affected families, but he was pleased to learn that the families had received assistance and support services. He noted that one of the fires is currently believed to have been accidental in nature. According to preliminary information, multiple cans of thinner, lacquer, and paint products had been stored underneath the mobile home, which may have contributed to the intensity of the fire.

Chief Thomas commended the first arriving fire crews for their quick response and efforts, noting that approximately 40 percent of the mobile home was saved. Because of the crews' actions, the family was able to recover many of their belongings, including important paperwork and personal items.

Chief Thomas also reported that the insurance company had already responded to the scene and confirmed that the family had insurance coverage. He stated that the Red Cross was contacted during the incident on Saturday night and that additional resources were utilized to help secure the property. He further noted that the family has relatives in town assisting them during the recovery process.

Councilmember Gomez requested to put fire safety on social media.

Mayor Pro Tem Ochoa voiced concerns regarding the increasing use of e-bikes within the community. She requested that staff post information on the City's social media platforms to help educate residents about e-bike safety and regulations.

N. GENERAL BUSINESS

Council members may raise issues, request future agenda items, or provide comments regarding City business.

O. FUTURE AGENDA ITEMS

Description	Responsible Party	Agenda Date
Sewer DIF	City Manager	TBD
Sign Ordinance	Fire Chief	July 2026
Potential Solar Project	City Manager	TBD
Potential AI Solutions	City Manager	TBD
City Representation on Committees – Water Blueprint for the San Joaquin Valley and San Joaquin Valley Collaborative Action Program	City Manager	TBD
Incentives for Commercial Development	City Manager	July 2026
Cannabis Revenue	City Manager	5-26-2026
Downtown Specific Plan	City Planner	TBD
C-Train Ordinance	City Manager	TBD
ADU Workshop	City Planner	TBD
MOU for positive PR with Visalia Talks	City Manager	TBD

P. EXECUTIVE (CLOSED) SESSION

Mayor Hernandez adjourned to closed session at 7:11pm

Public Employment Section 54957- Farmersville Community Center
Public Employee Performance 54957- Account Clerk

The Council voted 2-1 to deny the $1500 request for event funding for Futsal Soccer

Mayor Hernandez adjourned to open session at 8:11pm.

Mayor Hernandez adjourned the meeting at 8:11pm.

Q. REGULAR MEETING ADJOURNMENT

State of California)

County of Tulare) ss.
City of Farmersville)

I declare under penalty of perjury that I am employed by the City of Farmersville, in the City Manager's Office; and that I posted this Agenda on the bulletin board outside of City Hall, 909 W. Visalia Rd. Farmersville, CA 93223 on May 22, 2026 and online on the City of Farmersville website: https://www.cityoffarmersville-ca.gov/.

_____

Rochelle Giovani , City Clerk

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STAFF REPORT

TO: Farmersville City Council
MEETING DATE: June 8, 2026

Item #: 2
Consent

DEPARTMENT: City Manager

FROM: Jay Brock, Interim City Manager

AGENDA TITLE: Second Reading and Adoption of Resolution 2026-016 Calling for the Submission to the Voters a Measure Relating to the Enactment of a Ten Percent (10%) Transient Occupancy Tax at the November 3, 2026 General Municipal Election

ACTION & RECOMMENDATION

Staff recommends that the City Council conduct the second reading and adopt the Resolution calling for the submission to the voters a measure relating to the enactment of a ten percent (10%) Transient Occupancy Tax ("TOT") on hotel occupancies within the City of Farmersville at the General Municipal Election to be held on November 3, 2026.

BACKGROUND | ANALYSIS

At the previous regular City Council meeting on May 26, 2026, the City Council conducted the first reading and introduction of the Resolution related to placing a Transient Occupancy Tax measure before the voters. The proposed measure would establish a ten percent (10%) tax on hotel, motel, and other short-term lodging stays within the City for occupancies of thirty (30) consecutive days or less.

Transient Occupancy Taxes are commonly utilized by municipalities throughout California as a source of General Fund revenue to support municipal services and operations. The proposed measure would allow the voters of Farmersville the opportunity to determine whether the City should implement a local Transient Occupancy Tax.

Pursuant to election deadlines and City procedures, the Resolution is now before the City Council for second reading and adoption in order to place the measure on the November 3, 2026 General Municipal Election ballot.

DISCUSSION

If approved by the voters, the proposed ten percent (10%) Transient Occupancy Tax would apply to individuals occupying hotel or lodging accommodations within the City for short-term stays. Revenue generated from the tax would be deposited into the City's General Fund and may be used for general governmental purposes, including public safety, roadway maintenance, parks, recreation, and other City services.

Approval of the Resolution is necessary to meet the filing deadlines established by the County of Tulare and the State of California for measures to appear on the November 3, 2026 ballot. No substantive changes have been made since the first reading.

As this item previously received its first reading, staff is presenting the Resolution for second reading and adoption.

FISCAL IMPACT

There is no immediate fiscal impact associated with adopting the Resolution. If approved by the voters, the Transient Occupancy Tax would generate additional General Fund revenue to support City operations and services.

ATTACHMENTS

Resolution 2026-016

MEASURE ___

Occupancy Tax

City of Farmersville

Impartial Analysis from the City Attorney

The City currently does not collect a transient occupancy tax ("TOT") from transients, who are defined as those individuals occupying hotel rooms within the City for fewer than thirty (30) days. The transient pays the tax to the hotel and the hotel pays the tax to the City. The City deposits the revenue into its General Fund, which supports a wide range of City services, including police and fire protection, youth recreation, senior activities, programs and economic development. Although the City does not currently have any hotels, the City anticipates that a 10% TOT will generate $250,000 annually once a moderate sized facility is operational.

The TOT will be deposited into the General Fund and as such will be a general tax. A complete description of the TOT may be found on the City's website at http://www.cityoffarmersville-ca.gov/148/City-Clerk."

The measure places before the voters the enactment of a 10% TOT that will become effective if a majority of voters approve it. The above statement is an impartial analysis of Measure ___. If you desire a copy of the measure, please call the City Clerk of the City of Farmersville at 559-747-0458 and a copy will be mailed to you at no cost.

Arguments for Measure __

Measure ___ enables voters to establish a 10% tax rate on hotel/motel occupancy, called the Transient Occupancy Tax (TOT). It is NOT a new tax.

A 10% tax rate is very competitive with other communities and could become one of the most important funding sources for vital City services.

Measure ___ is good government. The City Council and community leaders urge you to vote "YES" on Measure __.

s/Tina Hernandez, Mayor

s/Araceli Ochoa, Mayor Pro Tem

s/Paul Boyr, City Council Member

s/Gregorio Gomez, City Council Member

s/Danny Valdovinos, City Council Member

(No arguments against Measure ___ were submitted)

Full Text of Measure ___

ORDINANCE NO. __538_____

Chapter 3.44

TRANSIENT OCCUPANCY TAX

Sections:

3.44.010 Definitions.
3.44.020 Tax imposed.
3.44.030 Exemptions.
3.44.040 Collection; Operator's duties.
3.44.050 Transient occupancy registration certification.
3.44.060 Third party rental transactions.
3.44.070 Reporting and remitting.
3.44.080 Penalties and interest.
3.44.090 Failure to collect and report tax – Determination of tax by Chief Financial Officer.
3.44.100 Appeal.
3.44.110 Operators to retain records for three years.
3.44.120 Refunds.
3.44.130 Actions to collect.
3.44.140 Deficiency determinations.
3.44.150 Amendment or repeal – Adjustment of Taxing Rate or Methodology.

3.44.010 Definitions.

Except where the context otherwise requires, the definitions given in this section govern the construction of this article:

A. "Chief Financial Officer" means the City's Chief Financial Officer, or designee.

B. "Hotel" means any structure or any portion of any structure, which is occupied or intended or designed for occupancy by transients for dwelling, lodging, or sleeping purposes, and includes any hotel, inn, tourist home or house, motel, studio hotel, bachelor hotel, lodging house, rooming house, dormitory, public or private club, mobile home or house trailer at a fixed location or other similar structure or portion thereof, even if such structure is also used for other purposes, including residential purposes.

C. "Occupancy" means the use or possession of, or the right to use or possession of any room or rooms or portion thereof, in any hotel for dwelling, lodging, or sleeping purposes; whether or not the person entitled to the use or possession actually uses or possesses such room or rooms or portion thereof. The use or possession or right to use or possess any room or any suite of connecting rooms as office space, banquet or private dining rooms, or as exhibition, sample or display space shall not be considered "occupancy" unless the person uses or possesses, or has the right to use or possess all or any portion of such room or suite of rooms for dwelling, lodging or sleeping purposes.

D. "Online Short-Term Rental Company" means any person, whether operating for profit or not for profit, which facilitates the connection between transient and operator to purchase occupancy in any hotel via the Internet, or by similar electronic means.

E. "Online Travel Company" means any person whether operating for profit or not for profit, which enables transients to purchase occupancy in a hotel via the Internet, or by other similar electronic means.

F. "Operator" means the person who is the proprietor of the hotel, whether in the capacity of owner, lessee, sublessee, mortgagee in possession, licensee, or any other capacity. Where the Operator functions through a managing agent or any type of character other than an employee, the managing agent shall also be deemed an operator for the purposes of this chapter and shall have the same duties and liabilities as the principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall, however, be considered to be compliance by both.

G. "Person" means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination action as a unit.

H. "Rent" means The total consideration charged to the transient, including but not limited to, room rates, service charges, parking fees, purchase price, advanced registration, block or group reservation charges, assessments, retail markup, commission, processing fees, cancellation charges, nutrition fees, or online booking or broker fees, whether charged by an operator or a rental agent, whether or not received, for occupancy in a hotel valued in money, whether to be received in money, goods, labor or otherwise, including all receipts, cash, credits and property and services of any kind or nature, without any deduction therefrom whatsoever. Nothing in this definition shall be construed to mean that rent is charged directly or indirectly for occupancy in a hotel when a room is provided to the transient as a compliment from the operator and where no consideration is charged to or received from any other person. Further, bona fide charges for food and beverages which are subject to tax under the California Sales and Use Tax Law (Revenue and Taxation Code Sections 6001 *et. seq.*) shall not be deemed rent subject to the tax imposed by this chapter.

I. "Rental agent" means any person other than an operator who collects rent from a transient for the transient's occupancy of a hotel, including but not limited to an online travel company or an online short-term rental company.

J. "Transient" means any person who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license or other agreement for a period of thirty (30) consecutive days or less, counting portions of calendar days as full days. Any such person occupying such space in a hotel shall be deemed a transient until the period of thirty (30) days has expired unless there is an agreement in writing between the operator and the occupant providing for a longer period of occupancy. In determining whether a person is a transient, uninterrupted periods of time extending both prior and subsequent to the effective date of this chapter may be considered.

3.44.020 Tax imposed.

For the privilege of occupancy in any hotel, each transient is subject to and shall pay a tax in the amount of ten percent of the rent paid by the transient. This tax constitutes a debt owed by the transient to the City, which is extinguished only by payment to the operator, the City, or to a rental agent pursuant to Section 3.44.060. The transient shall pay the tax to the operator or rental agent at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax shall be due upon the transient's ceasing

of occupancy. If for any reason the tax due is not paid to the operator or rental agent, the City's Chief Financial Officer may require that such tax shall be paid directly to the City's Chief Financial Officer.

3.44.030 Exemptions.

A. No tax shall be imposed upon:

1. Any federal or State of California officer or employee when occupying a room while on official government business.
2. Any officer or employee of a foreign government who is exempt by reason of express provision of federal law or international treaty.

B. No exemption shall be granted except upon a claim made at the time rent is collected, and under penalty of perjury, upon a form prescribed by the City's Chief Financial Officer. Any federal or State of California officer of employee when on official governmental business claiming such exemption shall provide to the operator conclusive evidence that the occupancy is official business:

1. Travel orders from the government employer; or a government warrant issued to pay for the occupancy; or a government credit card issued to pay for the occupancy; and
2. Proof of governmental employment as an employee or officer as described in paragraph (1) of this subsection (B) and proof, consistent with these provisions, that the occupancy is for official business.

C. It shall be the duty of an operator to keep and maintain for a period of three (3) years written documentation in support of each exemption granted under this section.

3.44.040 Collection; Operator's duties.

A. Each operator shall collect the tax imposed by this chapter to the same extent and at the same time as the rent is collected from every transient.

B. If the rent is prepaid by obtaining blocks of credit or similar calls upon occupancy to be subsequently reserved, the operator shall collect the tax at the same time as specific periods for occupancy are committed to the transient by the operator, the operator shall hold such tax until it is determined to what extent, if any, the credits or similar calls upon occupancy are issued, or otherwise forfeited, and the operator shall refund the tax to the transient applicable to periods when credits or similar calls upon occupancy are not used but are restored to the transient, or the tax shall be deemed irrevocably collected for the

remittance to the City's Chief Financial Officer at the time when the credits or similar calls upon occupancy are so used, or otherwise forfeited, by the transient.

C. The amount of tax shall be separately stated from the amount of the rent charged, and each transient shall receive for payment from the operator. No operator of a hotel shall advertise or state in any manner, whether directly or indirectly that the tax or any part thereof will be assumed or absorbed by the operator, or that it will not be added to the rent, or that, if added, any part will be refunded except in the manner hereinafter provided.

3.44.50 Transient occupancy registration certification.

Within thirty (30) days after the effective date of this chapter, or within thirty (30) days after commencing business, whichever is later, each operator of any hotel renting occupancy to transients shall register said hotel with the City's Chief Financial Officer and obtain a transient occupancy registration certificate to be at all times posted in a conspicuous place on the premises. Said certificate shall, among other things, state the following:

1. The name of the operator;
2. The address of the hotel;
3. The date upon which the certificate was issued;
4. "This Transient Occupancy Registration Certificate signifies that the person named on the face hereof has fulfilled the requirements of the City of Farmersville Transient Occupancy Tax ordinance by registering with the Chief Financial Officer for the purpose of collecting from transients the transient occupancy tax and remitting said tax to the Chief Financial Officer. This certificate does not authorize any person to conduct any unlawful business or to conduct any lawful business in an unlawful manner, nor to operate a hotel without strictly complying with all local applicable laws, including but not limited to those requiring a permit from any board, commission, department or office of this City. This certificate does not constitute a permit and is not transferrable to a different operator."

3.44.060 Third party rental transactions.

A. Any transient who pays rent to a rental agent instead of to an operator shall, at the time the rent is paid, pay the tax to the rental agent in the manner required by Section 3.44.020. If for any reason the tax is not paid to the rental agent, it shall be paid to the operator before the transient has ceased occupancy in the hotel or paid directly to the City's Chief Financial Officer pursuant to Section 3.44.020. Any transient seeking a refund under Section 3.44.120 of taxes paid to a rental agent must establish that the transient has been unable to obtain a refund from the rental agent who collected the tax.

B. Any rental agent who collects rent shall comply with all obligations of the operator set forth in Sections 3.44.040 and 3.44.110 of this chapter. The rental agent shall remit all collected taxes to the operator before the deadline for the operator to remit the taxes to the City's Chief Financial Officer under Section 3.44.070, and the rental agent shall provide the operator with copies of all records required to be maintained by the operator pursuant to Section 3.44.110 of this chapter, including records necessary for the operator to comply with its obligations under this chapter.

C. If the City's Chief Financial Officer determines that a rental agent has failed to collect, remit, or report any tax, the City's Chief Financial Officer may take any action against the rental agent that he or she may take against an operator under Sections 3.44.080 and 3.44.090 of this chapter subject to the requirements of those sections. If the City's Chief Financial Officer assesses unremitted taxes and penalties against the rental agent, the rental agent shall be subject to the provisions of Sections 3.44.090, 3.44.100, 3.44.120 and 3.44.130 of this chapter as if it were an operator. Nothing in this section shall prohibit the City's Chief Financial Officer from assessing the full amount of any unremitted taxes and penalties solely against the operator in lieu of assessing some or all of those taxes and penalties against the rental agent.

3.44.070 Reporting and remitting.

Each operator on or before the last day of the month following the close of each calendar quarter, or at the close of any shorter reporting period which may be established by the City's Chief Financial Officer, shall make a return to the City's Chief Financial Officer, on forms provided by him or her, of the total rents charged and received in the amount of tax collected for transient occupancies. If no tax was due or collected during the previous reporting period, the operator shall file a return so stating under penalty of perjury. At the time the return is filed, the full amount of the tax collected shall be remitted to the City's Chief Financial Officer. The City's Chief Financial Officer may establish shorter reporting periods for any certificate holder if he or she deems it necessary in order to ensure collection of the tax, and he or she may require further information in the return. Returns and payments are due immediately upon cessation of business for any reason. All taxes collected by operators pursuant to this chapter shall be held in trust for the account of the City until payment thereof is made to the City's Chief Financial Officer.

3.44.080 Penalties and interest.

A. *Original delinquency.* Any operator who fails to remit any tax imposed by this chapter within the time required shall pay a penalty of ten percent (10%) of the amount of the tax, in addition to the amount of the tax.

B. *Continued delinquency.* Any operator who fails to remit any delinquent remittance on or before a period of thirty (30) days following the date on which the remittance first became delinquent shall pay a second delinquency penalty of ten percent (10%) of the amount of the tax in addition to the amount of the tax and the ten percent penalty first imposed.

C. *Fraud.* If the City's Chief Financial Officer determines that the nonpayment of any remittance due under this chapter is due to fraud, a penalty of twenty-five percent (25%) of the amount of the tax shall be added thereto in addition to the penalties stated in subsections (A) and (B) of this section.

D. *Interest.* In addition to the penalties imposed, any operator who fails to remit any tax imposed by this ordinance shall pay interest at the rate of one-half of one percent (0.5%) per month or fraction thereof on the amount of the tax, exclusive of penalties, from the date on which the remittance first became delinquent until paid.

E. *Penalties merged with tax.* Every penalty imposed and such interest as accrues under the provisions of this section shall become part of the tax herein required to be paid.

3.44.090 Failure to collect and report tax – Determination of tax by City's Chief Financial Officer.

A. If the operator shall fail or refuse to collect tax and to make, within the time provided in this chapter, any report and remittance of said tax or any portion thereof required by this chapter, the City's Chief Financial Officer shall proceed in such manner as may be deemed best to obtain facts and information on which to base an estimate of the tax due. As soon as the City's Chief Financial Officer shall procure such facts and information upon which to base the assessment of any tax imposed by this chapter and payable by any operator who has failed were refused to collect the same and to make such reports and remittance, the City's Chief Financial Officer shall proceed to determine and assess against such operator the tax, interest and penalties provided for by this chapter.

B. In case such determination is made, the City's Chief Financial Officer shall give a notice of the amount so assessed by serving it personally or by depositing it in the United States Mail, postage prepaid, addressed to the operator so assessed at his or her last known place of address. Such operator may within ten (10) days after this serving or mailing of such notice, make application in writing to the City's Chief Financial Officer for a hearing on the amount assessed. If application by the operator for a hearing is not made within the time prescribed, the tax, interest and penalties, if any, determined by the City's Chief Financial Officer shall become final and conclusive and immediately due and payable. If

such application is made, the City's Chief Financial Officer shall give not less than five (5) days written notice in the manner prescribed herein to the operator to show cause at a time and placed fixed instead notice why set amounts specified therein should not be fixed for such tax, interest and penalties.

C. At such hearing, the operator may appear and offer evidence why such specified tax, interest and penalties should not be so fixed. After such hearing, the City's Chief Financial Officer shall determine the proper tax to be remitted and shall thereafter give written notice and the amount of such tax, interest and penalties. The amount determined to be due shall be payable after fifteen (15) days unless an appeal is taken as provided in Section 3.44.100.

3.44.100 Appeal.

Any operator aggrieved by a decision of the City's Chief Financial Officer with respect to the amount of such tax, interest and penalties, if any, may appeal to the City Council by filing a notice of appeal with the City Clerk within fifteen (15) days of their serving or mailing of the determination of the tax due. The City Council shall fix a time and place for hearing such appeal, and the City Clerk shall give notice in writing to such operator at his or her last known address. The findings of the City Council shall be final and conclusive and shall be served upon the appellant in the manner prescribed in this section for service of notice of hearing. Any amount found to be due shall be immediately due and payable upon the service of notice.

3.44.110 Operators to retain records for three (3) years.

It shall be the duty of every operator liable for the collection and payment to the City of any tax imposed by this chapter to keep and preserve, for a period of three (3) years, all records as may be necessary to determine the amount of such tax as the operator may have been liable for the collection of and payment to the City, which records the City's Chief Financial Officer shall have the right to inspect at all reasonable times for the purposes of determining the accuracy thereof.

3.44.120 Refunds.

A. Whenever the amount of any tax, interest or penalty has been overpaid or paid more than once or has been erroneously or illegally collected or received by the City under this chapter, it may be refunded as provided in subsections (B) and (C) of this section; provided, a claim in writing therefore, stating under penalty of perjury the specific grounds upon which the claim is founded is filed with the collector within three (3) years

of the date of payment. The claim shall be on forms furnished by the City's Chief Financial Officer.

B. An operator may claim a refund or take as credit against taxes collected and remitted the amount overpaid, paid more than once or erroneously or illegally collected or received when it is established in a manner prescribed by the City's Chief Financial Officer that the person from whom the tax has been collected was not a transient; provided, however, that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded to the transient or credited to rent subsequently payable by the transient to the operator.

C. A transient may obtain a refund of taxes overpaid or paid more than once or erroneously or illegally collected or received by the City by filing a claim in the manner provided in subsection (A) of this section, but only when the tax was paid by the transient directly to the City's Chief Financial Officer or when the transient having paid the tax to the operator, establishes to the satisfaction of the City's Chief Financial Officer that the transient has been unable to obtain a refund from the operator who collected the tax.

D. No refund shall be paid under the provisions of this section unless the claimant establishes his right thereto by written records showing entitlement thereto.

3.44.130 Actions to collect.

Any tax required to be paid by any transient Under the provisions of this chapter shall be deemed a debt owed by the transient to the City. Any such tax collected by an operator which has not been paid to the City shall be deemed a debt owed by the operator to the City. Any person owing money to the City under the provisions of this chapter shall be liable to an action brought in the name of the City for recovery of such amount.

3.44.140 Deficiency determinations.

If the City's Chief Financial Officer is not satisfied with a return filed by an operator or the amount of the tax required to be paid to the City pursuant to a return, the City's Chief Financial Officer may compute and determine the amount required to be paid upon the basis of the facts contained in the return or upon the basis of any information within his possession or that may come into the City's Chief Financial Officer's possession. One or more deficiency determinations may be made of the amount due for any period. The City's Chief Financial Officer shall give to the operator written notice of his determination in the same manner as provided in Section 3.44.090. The operator shall be entitled to apply for a hearing on the amount assessed pursuant to the procedure set forth in Section 3.44.090 and shall thereafter be entitled to

appeal to the City Council in accordance with the provisions of Section 3.44.100. The penalties and interest provided by Section 3.44.080 shall be applicable to the amount of deficiency established pursuant to this section.

3.44.150 Amendment or Repeal – Adjustment of Taxing Rate or Methodology.

This chapter may be repealed or amended by the City Council without a vote of the people of the City of Farmersville. However, as required by California Constitution Article XIIIC (Proposition 218), voter approval is required for any amendment or provision that would increase the maximum rate or methodology of any tax levied pursuant to this chapter. The people of the City of Farmersville affirm that the action shall not constitute an increase of the rate or methodology of the transient occupancy tax requiring subsequent voter approval:

1. The restoration of the rate of the tax to a rate that is no higher than the maximum set by this voter-approved chapter, if the City Council has previously acted to reduce the rate of the tax; and
2. An action that interprets or clarifies the methodology of the tax, or any definition applicable to the tax, so long as interpretation or clarification (even if contrary to some prior interpretation or clarification) is not inconsistent with the language of this chapter; and
3. The establishment of a class of person or service that is exempt or excepted from the tax or the discontinuation of any such exemption or exception (other than the discontinuation of an exemption or exception explicitly set forth in this chapter); and
4. Resuming collection of the tax imposed by this chapter, even if the City of Farmersville had, for some period of time, either suspended collection of the tax or otherwise failed to collect the tax, in whole or in part.

ARTICLE 4. SEVERABILITY.

Each of the provisions of this Ordinance is severable from all other provisions. If any chapter, section, subsection, paragraph, sentence, clause or phrase of this Ordinance is for any reason held by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remaining provisions of this Ordinance.

ARTICLE 5. NOT A CEQA PROJECT.

The City Council finds that this Ordinance is not subject to the California Environmental Quality Act (CEQA) pursuant to Sections 15060(c)(2) (the activity will not result in a direct or reasonable foreseeable indirect physical change in the environment) and 15060(c)(3) (the activity is not a project as defined in Section 15378) of the CEQA Guidelines, California Code of

Regulations, Title 14, Chapter 3, because it has no potential for resulting in physical change to the environment, directly or indirectly.

ARTICLE 6. EXECUTION AND EFFECTIVE DATE.

Following certification that Farmersville voters have approved this Ordinance, the Mayor shall sign it attesting to its adoption by the People voting thereon at the November 3, 2026 General Municipal Election, and the City Clerk shall cause the same to be entered in the book of original ordinance ordinances of said City; and shall cause the same, or a summary thereof, to be published as required by law.

This Ordinance shall take effect only if approved by a majority of the eligible voters of the City of Farmersville voting at the General Municipal Election to be held on November 3, 2026. Pursuant to California Elections Code section 9217, this Ordinance shall be deemed valid and binding and shall be considered as adopted upon the date that the vote is declared by the City Council and shall take effect ten (10) days after that date.

This Ordinance was approved and adopted by the People of the City of Farmersville at the City's November 3, 2026 statewide election.

_____

Mayor

ATTEST:

_____

City Clerk

RESOLUTION NO. 2026-016

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FARMERSVILLE, CALIFORNIA, CALLING FOR THE SUBMISSION TO THE VOTERS A QUESTION RELATING TO ENACTING A TEN PERCENT (10%) TRANSIENT OCCUPANCY TAX ON HOTEL OCCUPANCIES WITHIN THE CITY AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026

WHEREAS, the City Council of the City of Farmersville desires to submit to the voters a question relating to the enactment of a ten percent (10%) Transient Occupancy Tax ("TOT") on hotel occupancies within the City; and

WHEREAS, the General Municipal Election will be held on Tuesday, November 3, 2026; and

WHEREAS, the City Council desires to place the proposed Transient Occupancy Tax measure before the voters at said election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF FARMERSVILLE, CALIFORNIA, DOES HEREBY RESOLVE, DECLARE, DETERMINE, AND ORDER AS FOLLOWS:

Section 1. Pursuant to the laws of the State of California, the following question shall be submitted to the voters of the City of Farmersville at the General Municipal Election to be held on Tuesday, November 3, 2026:

Shall the measure enacting a ten percent (10%) Transient Occupancy Tax to be paid by hotel guests in the City of Farmersville, providing funding for general purposes such as city services, programs, economic development, and capital improvements, which is expected to generate an estimated $250,000 annually per hotel and remain in effect until repealed by the voters, be adopted?	YES
	NO

Section 2. The complete text of the proposed measure submitted to the voters shall be attached hereto as Exhibit "A."

Section 3. The vote requirement for passage of the measure shall be a majority (50% plus one) of the votes cast.

Section 4. The ballots to be used at the election shall be in form and content as required by law.

Section 5. The City Clerk is authorized, instructed, and directed to coordinate with the Tulare County Registrar of Voters to procure and furnish any and all official ballots, notices, printed matter, supplies, equipment, and paraphernalia necessary to properly and lawfully conduct the election.

Section 6. The polls for the election shall be open at 7:00 a.m. and remain open continuously until 8:00 p.m. on the day of the election, pursuant to Elections Code Section 10242, except as otherwise provided by law.

Section 7. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for municipal elections.

Section 8. Notice of the time and place of holding the election is hereby given and the City Clerk is authorized, instructed, and directed to provide any additional notice of the election in the time, form, and manner required by law.

Section 9. The City Clerk shall certify to the adoption of this Resolution and enter it into the book of original Resolutions of the City of Farmersville.

THE FOREGOING RESOLUTION WAS ADOPTED upon motion of Councilmember_____, Seconded by Councilmember_____, at a regular meeting on this _____ day of_____ by the following vote:

AYES:_____

NOES:_____

ABSTAIN:_____

ABSENT:_____

_____ _____

Tina Hernandez, Mayor

Rochelle Giovani, City Clerk

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: May 11, 2026

Item #: 1
Action Items

DEPARTMENT: City Manager

FROM: Interim City Manager Jay Brock

AGENDA TITLE: Resolution 2026-019 Recommending the Appointment of Armando Ernesto David Cervantes Garcia to the Tulare County Association of Governments (TCAG) Measure R Citizens Oversight Committee

ACTION & RECOMMENDATION

Adopt the Resolution recommending the appointment of Armando Ernesto David Cervantes Garcia to the Tulare County Association of Governments (TCAG) Measure R Citizens Oversight Committee.

BACKGROUND | ANALYSIS

The Tulare County Association of Governments (TCAG) administers Measure R, a voter-approved local transportation sales tax measure that funds transportation improvements, transit services, roadway maintenance, bicycle and pedestrian improvements, and other transportation-related projects throughout Tulare County.

As part of the Measure R program, a Citizens Oversight Committee was established to review expenditures, monitor implementation of the Measure R Expenditure Plan, and ensure accountability and transparency regarding the use of Measure R revenues.
TCAG periodically requests recommendations from local jurisdictions for appointments to the Measure R Citizens Oversight Committee to ensure representation from communities throughout Tulare County.

DISCUSSION

The City Council recognizes the importance of citizen participation and oversight in the expenditure of public transportation funds that directly benefit the residents of Farmersville and the surrounding region.
Armando Ernesto David Cervantes Garcia, a resident of the City of Farmersville, has expressed interest in serving on the TCAG Measure R Citizens Oversight Committee. Mr. Cervantes Garcia has demonstrated a commitment to community involvement and public service and would provide valuable representation for the City of Farmersville on the committee.
Staff believes Mr. Cervantes Garcia possesses the qualifications, experience, and interest necessary to effectively serve on the Measure R Citizens Oversight Committee and represent the interests of the community.
The attached Resolution formally recommends and supports the appointment of Armando Ernesto David Cervantes Garcia to the TCAG Measure R Citizens Oversight Committee and authorizes the City Clerk to transmit the Resolution and supporting materials to TCAG for consideration.

FISCAL IMPACT

There is no direct fiscal impact associated.

ATTACHMENTS

Resolution 2026-019

RESOLUTION NO. 2026-019

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FARMERSVILLE RECOMMENDING THE APPOINTMENT OF [NAME] TO THE TULARE COUNTY ASSOCIATION OF GOVERNMENTS (TCAG) MEASURE R CITIZENS OVERSIGHT COMMITTEE

WHEREAS, the voters of Tulare County approved Measure R, a local transportation sales tax measure, to fund transportation improvements, transit services, road maintenance, and other transportation-related projects throughout Tulare County; and

WHEREAS, Measure R established a Citizens Oversight Committee to review expenditures, monitor implementation of the Measure R Expenditure Plan, and promote accountability and transparency regarding the use of Measure R revenues; and

WHEREAS, the Tulare County Association of Governments (TCAG) periodically seeks recommendations from local jurisdictions for appointments to the Measure R Citizens Oversight Committee; and

WHEREAS, the City Council recognizes the importance of citizen participation in the oversight of public funds and transportation investments that benefit the residents of the City of Farmersville and Tulare County; and

WHEREAS, Armando Ernesto David Cervantes Garcia is a resident of the City of Farmersville and has demonstrated experience, interest, and commitment to public service and community involvement; and

WHEREAS, the City Council finds that Armando Ernesto David Cervantes Garcia possesses the qualifications and expertise necessary to effectively represent the interests of the community and serve on the Measure R Citizens Oversight Committee.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Farmersville as follows:

Section 1.

The City Council hereby recommends and supports the appointment of Armando Ernesto David Cervantes to serve on the Tulare County Association of Governments (TCAG) Measure R Citizens Oversight Committee.

Section 2.

The City Council directs the City Clerk to transmit a certified copy of this Resolution and any supporting application materials to the Tulare County Association of Governments (TCAG) for consideration.

Section 3.

The City Council expresses its appreciation to Armando Ernesto David Cervantes for their willingness to serve the residents of the City of Farmersville and Tulare County through participation on the Measure R Citizens Oversight Committee.

PASSED, APPROVED, AND ADOPTED this 8th day of June***, 2026***, by the following vote:

AYES:_____

NOES:_____

ABSTAIN:_____

ABSENT:_____

_____ _____

Mayor Tina Hernandez Rochelle Giovani, City Clerk

Measure R Citizens' Oversight Committee Vacancy Application

CITY OF FARMERSVILLE

COMMISSION / BOARD APPLICATION

Name of Commission/Board Applying For: Oversight Committee

District (if applicable): 2 1st

APPLICANT INFORMATION

Full Name: Armando Ernesto David Cervantes Garcia

Mailing Address: [redacted]

Residence Address (if different): _____

Residence Phone: [redacted]

Work Phone: N/A

Email Address: [redacted]

Alternate Phone (Optional): _____

RESIDENCY & ELIGIBILITY

Resident of Farmersville for: 24 years

Registered Voter in Farmersville: Yes ☑ No ☐

Do you possess a valid California Driver's License? Yes ☐ No ☑

Have you been convicted of a felony within the past five (5) years? Yes ☐ No ☑
If yes, please explain:

_____

_____

Are you related to a City of Farmersville employee or elected official? Yes ☐ No ☑
If yes, please explain relationship:

_____

_____

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Measure R Citizens' Oversight Committee Vacancy Application

EDUCATION & TRAINING

Pertinent Skills, Training, Certifications, or Experience:

Farmersville High School Alumni
Porterville College Alumni Gurnick Acd. current
Welding certified Key club president

COMMUNITY INVOLVEMENT

Community activities in which you are involved:

Parade committee, Kiwanis member 2022 - 2024
School Board student representative

Current or prior service on a City Board, Committee, or Commission (Farmersville or other):

QUALIFICATIONS

Please describe any qualifications, experience, education, or technical/professional background you have that relate to the duties of this Commission/Board:

in prior city/school projects for the community development of Sports park, graffiti removal and trash pickup

What are your goals in serving on this Commission/Board?

I would Love to attract more opportunities to form in our community, as Someone who is Socially keen on establishing a bridge for the ideas of others, I would love to return our Chamber of Commerce

EMPLOYMENT INFORMATION

Present Occupation: Current Nursing Student

Measure R Citizens' Oversight Committee Vacancy Application

Employer/Firm Name: Gurnick Academy of Medical Arts

Employer Address: 4747 N First St Fresno, Ca 93726

Employer Phone: [redacted]

CONFLICT OF INTEREST DISCLOSURE

Rules of law and ethics prohibit Commission/Board members from participating in or voting on matters in which they have a direct or indirect financial interest.

Are you aware of any potential conflicts of interest which may arise from your occupation, business interests, or financial holdings in relation to your responsibilities as a member of the Commission/Board to which you seek appointment?

Yes ☐ No ☑

If yes, please explain in detail:

CERTIFICATION

I hereby certify that the information contained in this application and any accompanying documents is true and correct to the best of my knowledge.

Signature of Applicant

Date

05/14/2026

Applicants are invited to attach additional pages, a resume, or any supplemental information that may assist in the evaluation of this application.

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: June 8, 2026

Item #: 2
Action Items

DEPARTMENT: Public Works

FROM: Jason Watts, City Engineer

AGENDA TITLE: Direction Regarding Decorative Streetlight Style for the Eagle Meadows Subdivision

ACTION & RECOMMENDATION

Staff is requesting City Council's direction regarding the preferred antique decorative streetlight style to be utilized within the Eagle Meadows Subdivision per the approved conditions of approval.

BACKGROUND | ANALYSIS

The Eagle Meadows Subdivision project was approved subject to Conditions of Approval established by the City. Included within the Conditions of Approval is the following requirement:

"Antique-style streetlamps. These help to reinforce the desired pedestrian-oriented character of the neighborhood."

While the Conditions of Approval establish the desired character and aesthetic of the subdivision lighting, a specific streetlight style, fixture type, pole design, manufacturer, ownership, or maintenance responsibility was not identified during the entitlement process.

As the project advances toward final improvement plan review and approval, staff is seeking City Council direction regarding the preferred streetlight style and maintenance approach to ensure the installed improvements align with the Council's vision for the development and the community as a whole.

Staff has identified two general antique-style streetlight options for Council consideration:

Acorn-Style Streetlights

- Traditional decorative fixture featuring a globe-shaped "acorn" luminaire.
- Provides a historic and pedestrian-oriented appearance consistent with many traditional downtown and residential settings.
- Generally distributes light in a broader pattern, which can result in more light being directed upward and less focused illumination on the roadway surface.
- May require additional fixtures to achieve the same roadway lighting levels as modern decorative fixtures.

Non-Acorn Decorative Streetlights

- Decorative poles with a more modern lantern-style fixture while maintaining the antique aesthetic required by the Conditions of Approval.
- Directs light more efficiently toward the roadway and sidewalks.
- Typically provides improved visibility for motorists, pedestrians, and cyclists while reducing light spill and glare.
- Better aligns with current lighting standards and public safety objectives.

After reviewing the available options, the City Engineer recommends the non-acorn decorative streetlight style due to its ability to provide superior roadway and pedestrian illumination while still maintaining the decorative and pedestrian-oriented character envisioned for the subdivision.

In addition to selecting a preferred streetlight style, staff is also seeking policy direction regarding ownership and maintenance of the streetlight system. The City may choose to:

1. Continue utilizing Southern California Edison (SCE) ownership and maintenance services, where SCE owns, operates, and maintains the streetlights and the City pays a monthly service fee; or
2. Have the City own and maintain the streetlights, providing greater control over fixture selection and future modifications but requiring the City to assume maintenance responsibilities and associated costs.

Staff notes that regardless of the direction provided by the City Council, final coordination and approval from Southern California Edison (SCE) will still be required before the streetlight design can be finalized and incorporated into the subdivision improvement plans. Council should also be aware that SCE may not approve all decorative streetlight styles or configurations requested by the City. Certain decorative fixtures may not meet SCE's ownership, maintenance, or operational requirements. If SCE determines that a decorative streetlight option is not eligible for its system, the City may need to consider an alternative fixture style or assume ownership and maintenance responsibilities for the streetlights. Staff will continue to coordinate with SCE and return to the City Council if additional direction is needed based on SCE's review and requirements.

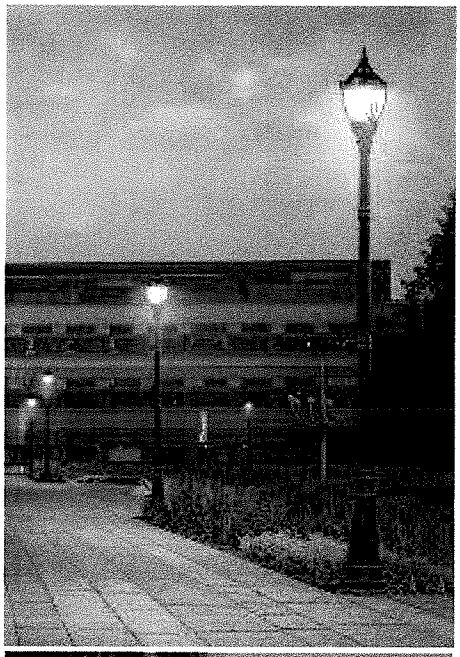
FISCAL IMPACT

There is no direct fiscal impact associated with providing direction regarding the decorative streetlight style. Costs associated with subdivision improvements, including streetlighting, will be borne by the developer.

ATTACHMENTS

1. Acorn Style Decorative Streetlight Example
2. Non-Acorn Style Decorative Streetlight Example

ATTACHMENT 1
ACORN STYLE DECORATIVE STREETLIGHT EXAMPLE

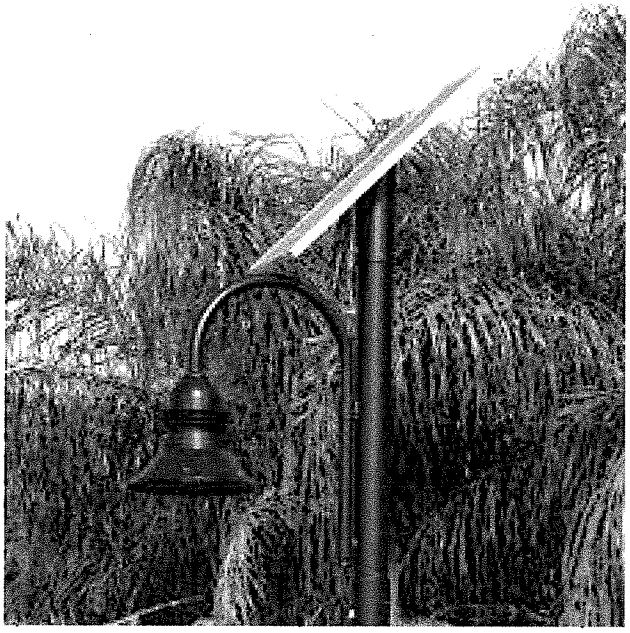


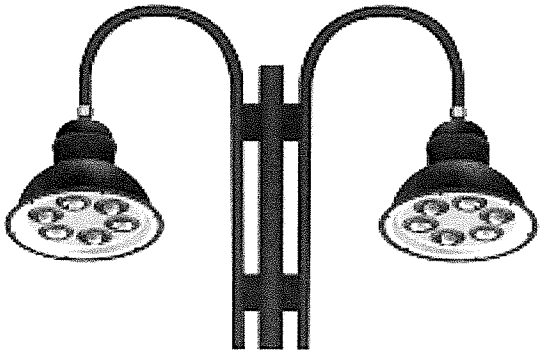




ATTACHMENT 2
NON-ACORN STYLE DECORATIVE STREETLIGHT EXAMPLE







STAFF REPORT

TO: Farmersville City Council
MEETING DATE: June 8, 2026

Item #: 3
Action Items

DEPARTMENT: Public Works

FROM: Jason Watts, City Engineer

AGENDA TITLE: Presentation on Funding Opportunity (Pedestrian Improvements)

ACTION & RECOMMENDATION

Provide direction to City Staff regarding the City Council's desired use and allocation of these funds.

BACKGROUND | ANALYSIS

The Measure R Program is a local transportation sales tax initiative approved by Tulare County voters and administered by the Tulare County Association of Governments (TCAG). The program provides funding for transportation-related improvements throughout Tulare County, including roadway rehabilitation, traffic safety enhancements, transit improvements, and active transportation facilities. Funding is distributed to local jurisdictions based on established allocation formulas and regional priorities.

The City currently has the opportunity to pursue approximately $2 million in available Measure R funding, subject to City Council direction and TCAG eligibility review. Staff is requesting that the City Council provide direction on one or more potential projects for further evaluation, scope development, and coordination with TCAG regarding funding eligibility and implementation requirements.
Based on previous City Council discussions and identified community needs, the City Engineer has developed the following project recommendations for Council consideration:

Option 1 – Liberty Park Trail Rehabilitation and Extension

Resurface the existing Liberty Park Trail and extend the trail connection to Farmersville Boulevard.

Staff Considerations:

- This option would enhance pedestrian and bicycle connectivity while improving the condition and usability of an existing active transportation facility.
- Selection of this option may require modifications to the scope of the City's upcoming Active Transportation Program (ATP) grant application, which is scheduled for submittal later this month.
- Staff would evaluate the impacts to the ATP project and coordinate any necessary revisions to maximize available funding opportunities.

Option 2 – Sidewalk Improvements West of Farmersville Boulevard

Construct new concrete sidewalk improvements within the existing residential subdivision located east of the new SMEE Homes development and west of Farmersville Boulevard.

Staff Considerations:

- This option would improve pedestrian accessibility, connectivity, and safety within an existing neighborhood that currently lacks complete sidewalk infrastructure.
- If selected, staff will further evaluate the project limits and determine the extent of improvements that can be constructed with the available Measure R funding.

- Staff will develop a preliminary project scope and cost estimate and return to City Council for review and approval prior to proceeding with design services.

Staff recommends that City Council provide direction on the preferred project alternative so that staff may begin coordination with TCAG and develop the necessary scope, budget, and implementation strategy for future consideration.

FISCAL IMPACT
There is no fiscal impact associated with this funding. This will be fully funded by measure R.

ATTACHMENTS
NONE

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: June 8, 2026

Item #: 4
Action Items

DEPARTMENT: City Manager

FROM: Jason Watts, City Engineer

AGENDA TITLE: Resolution 2026-014 Directing the City Manager to Submit a Claim for RSTP Funds.

ACTION & RECOMMENDATION

Adopt a resolution 2026-014 directing the City Manager to submit a claim to the Tulare County Association of Governments (TCAG) for the City's share of Regional Surface Transportation Program (RSTP) funds for Fiscal Year 2025–2026.

BACKGROUND | ANALYSIS

The Regional Surface Transportation Program (RSTP), established under MAP-21, provides federal funding to counties and Metropolitan Planning Organizations (MPOs) for transportation-related projects. The Tulare County Association of Governments (TCAG) serves as the designated MPO for Tulare County and administers the distribution of these funds to local agencies.

In 2013, TCAG approved a program allowing the exchange of Small Area (rural) RSTP funds for State Highway Account funds on a dollar-for-dollar basis. This exchange provides local agencies with more flexible funding that is easier to administer compared to federal funds.

DISCUSSION

For Fiscal Year 2025–2026, TCAG has estimated a total of $6,687,628 in RSTP funding available countywide. Based on population, the City of Farmersville is eligible to receive $71,322.

To access these funds, the City is required to submit a formal claim to TCAG. The funds may be used for eligible transportation-related projects, including street maintenance and improvements.

Adoption of the proposed resolution will authorize the City Manager to submit the required claim and secure the City's allocation of funds.

FISCAL IMPACT

The City of Farmersville will receive approximately $71,322 in RSTP funding for Fiscal Year 2025–2026. These funds will support transportation-related improvements and do not require a local match.

ATTACHMENTS

Resolution 2026-014

RESOLUTION 2026-014

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FARMERVILLE DIRECTING THE CITY MANAGER TO MAKE A CLAIM TO TCAG FOR ELIGIBLE RSTP FUNDING FOR THE FISCAL YEAR 2025-26

WHEREAS, MAP-21 designates Regional Surface Transportation Program (RSTP) funds for distribution to Counties and Metropolitan Planning Organizations (MPOs); and

WHEREAS, the Tulare County Association of Governments (TCAG) is the designated MPO for Tulare County; and

WHEREAS, California's intermodal Surface Transportation Enhancement Act (ISTEA) implementing legislation created the option for Counties and MPOs with 1990 urbanized area populations over 200,000 to exchange what is determined as the rural portion of their RSTP funds (Small Area Funds) in the non-urbanized areas for non- Federal State Highway Account funds on a dollar-for-dollar basis; and

WHEREAS, TCAG approved the exchange and distribution of Small Area STP Funds for State Highway Account Funds on June 17, 2013 via Resolution; and

WHEREAS, TCAG remains committed to its prior RSTP commitments to projects programmed in the FTIP and any remaining apportionment balance would be distributed to each member agency on the basis of population; and

WHEREAS, the Small Area (Rural) amount available to TCAG for exchange is $ and

WHEREAS, the estimated RSTP fund amount available to TCAG is $6,687,628 for the 2025/2026 fiscal year of which $71,322 is available to the City of Farmersville for the 2025/2026 fiscal year; and

WHEREAS, The City of Farmersville needs to make a claim to TCAG for the 2025-2026 RSTP Claim amount of exchanged State funds to TCAG to bring the funds to the City for ongoing road maintenance and other transportation related projects; and

NOW, THEREFORE BE IT RESOLVED, the City Council of the City of Farmersville hereby direct he City Manager to make the claim for the City's share of the RSTP funding available to the City of Farmersville for Fiscal Year 2025/2026.

PASSED, ADOPTED AND APPROVED this 8th day of June, 2026 by the following vote:

AYES _____

NOES _____

ABENSE _____

ABSTAIN _____

_____ _____

Tina Hernandez, Mayor

Rochelle Giovani, City Clerk

STAFF REPORT

TO: Farmersville City Council
MEETING DATE: June 8, 2026

Item #: 1
Discussion Items

DEPARTMENT: City Manager

FROM: Interim City Manager Jay Brock

AGENDA TITLE: Cannabis Measure Q Revenue Update

ACTION & RECOMMENDATION

Receive and file the Cannabis Measure Q Revenue Update report

BACKGROUND | ANALYSIS

Measure Q was approved by the voters to establish a cannabis business tax within the City. The tax revenues generated through Measure Q provide an additional funding source to support City services, infrastructure improvements, public safety, community programs, and other municipal needs as determined by the City Council.

The City currently receives Measure Q revenues from the following cannabis-related businesses:

- Token Farms
- Valley Pure
- Platinum Connections

Staff has prepared a quarterly revenue summary for Fiscal Years 2024-2025. And a yearly 2025-2026 to provide the City Council with an overview of revenues collected to date.

Staff also notes that the prior Finance Director reported Measure Q revenues based on the calendar year rather than the City's fiscal year. The revenue summaries included in this report have been organized according to the fiscal year to provide consistency with the City's financial reporting practices and budget process.

DISCUSSION

During Fiscal Year 2025, the City received approximately $846,923 in Measure Q revenue. Collections reflected varying performance among operators, with Token Farms and Valley Pure experiencing declines from prior-year levels while Platinum Connection demonstrated substantial growth.

To develop Fiscal Year 2026 projections, staff utilized a combination of:

Historical year-over-year growth trends between Fiscal Years 2024 and 2025;
Actual first-quarter Fiscal Year 2026 collections compared to first-quarter Fiscal Year 2025 collections; and
Management estimates where historical growth rates were determined to be excessively aggressive.

Historical growth rates indicated the following trends:

Token Farms: approximately 18.0% decline
Valley Pure: approximately 3.8% decline
Platinum Connection: approximately 27.6% increase

Actual first-quarter Fiscal Year 2026 performance reflected:

Token Farms: approximately 9.2% decline
Valley Pure: approximately 3.6% decline
Platinum Connection: approximately 1.7% increase

Based on projection, Fiscal Year 2026 Measure Q revenues are projected as follows:

Operator	**Projected FY 2026 Revenue**
Token Farms	$284,640
Valley Pure	$338,638
Platinum Connection	$248,401
Total Projected Revenue	$871,679

The projected total revenue of $871,679 represents an increase of approximately $24,756 over Fiscal Year 2025 actual collections, or approximately 2.9% growth.

Compared to Fiscal Year 2024 revenues of approximately $764,833, the Fiscal Year 2026 projection represents an overall increase of approximately 13.9%.

Staff has taken a conservative approach when estimating this year's revenue. Actual revenues may be slightly higher than projected depending on business activity and collection trends.

FISCAL IMPACT
Measure Q revenues continue to provide an ongoing funding source for the City's General Fund and support operational and capital improvement needs. Revenue collections may fluctuate quarterly based on cannabis market conditions, sales activity, and business operations.

ATTACHMENTS
None

Cannabis Taxes Collections

Measure Q

	Token Farms	Growth %	Valley Pure	Growth %	Platinum Connection	Growth %	
			2024				
Q1 2024	$ 99,456.75		$ 96,809.25				
Q2 2024	$ 103,161.90		$ 93,427.28				
Q3 2024	$ 97,209.40		$ 84,248.39				
Q4 2024	$ 96,697.14		$ 91,721.99		$ 2,100.40		
TOTAL	$ 396,525.19		$ 366,206.91		$ 2,100.40		
TOTAL REVENUE	$ 764,832.50						
			2025				
Q1 2025	$ 82,300.00	-17.25%	$ 90,815.97	-6.19%	$ 24,431.88		
Q2 2025	$ 81,124.48	-21.36%	$ 91,816.40	-1.72%	$ 37,763.04		
Q3 2025	$ 78,848.13	-18.89%	$ 85,677.47	1.70%	$ 47,951.50		
Q4 2025	$ 82,816.14	-14.36%	$ 83,345.36	-9.13%	$ 60,032.23	2758.13%	
TOTAL	$ 325,088.75		$ 351,655.20		$ 170,178.65		
HISTORICAL GROWTH		-17.96%		-3.84%		2758.13%	AVERAGE
TOTAL REVENUE	$ 846,922.60						
PERCENTAGE INCREASE	10.73%						
			2026				
Q1 2026	$ 74,768.26	-9.15%	$ 87,527.18	-3.62%	$ 66,217.19	171.03%	
Q2 2026	$ 70,125.80	-13.56%	$ 88,392.00	-3.73%	$ 47,203.80		PROJECTIONS
Q3 2026	$ 68,158.08	-13.56%	$ 82,482.03	-3.73%	$ 59,939.38		
Q4 2026	$ 71,588.11	-13.56%	$ 80,236.90	-3.73%	$ 75,040.29		
TOTAL	$ 284,640.26		$ 338,638.12		$ 248,400.65		
TOTAL PROJECTED REVENUE	$ 871,679.03						
CURRENT 2026 GROWTH		-9.15%		-3.62%		171.03%	
AVERAGE GROWTH		-13.56%		-3.73%		1464.58%	AVERAGE
PROJECTED PERCENTAGE INCREASE	2.92%					**USED 25% DUE TO AGGRESSIVE %	
2024 VS 2026	13.97%						

EXPLANATION

FY 2026 Measure Q revenues were projected using a combination of historical year over year growth from 2024 to 2025 and actual first quarter 2026 performance compared to first quarter 2025 collections. Historical and current growth rates were averaged to develop projected collections for Token Farms and Valley Pure. Due to the significant expansion of Platinum Connection operations, a conservative management estimate of 25% growth was used rather than applying the full historical growth rate. Based on this methodology, total Measure Q revenue is projected at approximately $871,679 for FY 2026, representing an increase of approximately 3% over FY 2025 actual collections.